

# HE Green Paper: response to question 22

**Cite as:** Martin Paul Eve, "HE Green Paper: response to question 22", *eve.gd: Martin Paul Eve*, December 16, 2015, <https://doi.org/10.59348/2xymk-83m84>.

---

**T**his post is part of an [ongoing series](#) where I intend to develop my full *personal* (not institutional) response to the HE Green Paper. Comments are welcome to refine this.

The Green Paper asks in Question 22:

*a) Do you agree with the proposed powers for OfS and the Secretary of State to manage risk?  
Please give reasons for your answer.*

*b) What safeguards for providers should be considered to limit the use of such powers?*

a.) Beyond the broader objections I have to many elements of the Paper, which these powers are supposed to implement, the powers are too broadly defined. The option of “a power to confer additional functions relating to education onto OfS”, even subject to parliamentary approval, is basically a catch-all final clause that allows the future expansion of OfS far beyond what is proposed in this Paper. I also do not think that these powers alone will manage risk, given the proposed deregulation of market entrance.

b.) No response.